

1 AN ACT relating to operating a motor vehicle.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔SECTION 1. A NEW SECTION OF KRS 186.400 TO 186.640 IS CREATED
4 TO READ AS FOLLOWS:

5 **(1) As used in this section, "communication disorder" means a health condition or**
6 **disability that may impede effective communication.**

7 **(2) The application for any initial or renewal instruction permit, operator's license,**
8 **or personal identification card under KRS 186.400 to 186.640, shall allow an**
9 **applicant to choose to indicate on the document that the applicant has a**
10 **communication disorder.**

11 **(3) The cabinet shall:**

12 **(a) Ensure that the instruction permit, operator's license, or personal**
13 **identification card of an applicant who has indicated a communication**
14 **disorder on an application includes a notation of the communication**
15 **disorder on the face of the instruction permit, operator's license, or personal**
16 **identification card;**

17 **(b) Consult with developmental disability and intellectual disability advocacy**
18 **groups with respect to the design of the communication disorder notation;**

19 **(c) Notify a person with a communication disorder notation on an instruction**
20 **permit, operator's license, or personal identification card who turns**
21 **eighteen (18) years of age that the person may request that the**
22 **communication disorder notation be removed;**

23 **(d) Delete any record of a person's communication disorder notation on request**
24 **by the person at any time;**

25 **(e) Establish public outreach efforts to educate the general public on the**
26 **availability of the communication disorder notation; and**

27 **(f) Put information on its website about the availability of a communication**

1 disorder notation on an instruction permit, operator's license, or personal
2 identification card.

3 (4) The cabinet shall not assess a fee of any kind for the placement or removal of a
4 communication disorder notation on an instruction permit, operator's license, or
5 personal identification card, including for the issuance of a corrected document,
6 if no other corrections are made.

7 (5) The cabinet shall not:

8 (a) Require an applicant for an instruction permit, operator's license, or
9 personal identification card to provide proof of the applicant's
10 communication disorder;

11 (b) Except as provided in subsection (6) of this section, disclose for any use
12 without a court order information related to an applicant's:

13 1. Notation of a communication disorder on an application for an
14 instruction permit, operator's license, or personal identification card;
15 or

16 2. Request to remove a notation of a communication disorder from an
17 instruction permit, operator's license, or personal identification card;
18 or

19 (c) Use information disclosed by a person under this section as a basis for
20 referring the person to the medical review board established in KRS
21 186.444.

22 (6) The cabinet may make information described in subsection (5)(b) of this section
23 available to:

24 (a) A court;

25 (b) A criminal justice agency;

26 (c) A driver licensing authority;

27 (d) The applicant;

1 (e) The applicant's attorney; or

2 (f) Any third party designated by the applicant.

3 (7) The Department of Kentucky State Police shall, in partnership with the Kentucky
 4 Law Enforcement Council, implement law enforcement training on interacting
 5 with persons who have a communication disorder.

6 ➔Section 2. KRS 186.531 is amended to read as follows:

7 (1) As used in this section:

8 (a) "GF" means the general fund;

9 (b) "IP" means instruction permit;

10 (c) "License Fund" or "LF" means the KYTC photo license account created in
 11 KRS 174.056;

12 (d) "MC" means motorcycle;

13 (e) "MC Fund" or "MCF" means the motorcycle safety education program fund
 14 established in KRS 176.5065;

15 (f) "OL" means operator's license; and

16 (g) "PIDC" means personal identification card.

17 (2) Except as provided in subsection (11) of this section, the fees imposed for
 18 voluntary travel ID operator's licenses, instruction permits, and personal
 19 identification cards shall be as follows. The fees received shall be distributed as
 20 shown in the table. The fees shown, unless otherwise noted, are for an eight (8) year
 21 period:

Card Type	Fee	LF	GF	MCF
OL (initial/renewal)	\$48	\$48	\$0	\$0
OL (Under 21) (Up to 4 years)	\$18	\$18	\$0	\$0
Any OL, MC, or combination				
(duplicate/corrected)	\$15	\$13.25	\$1.75	\$0
Motor vehicle IP (3 years)	\$18	\$16	\$2	\$0

1	Motorcycle IP (1 year)	\$18	\$13	\$1	\$4
2	Motorcycle OL (initial/renewal)	\$48	\$38	\$0	\$10
3	Combination vehicle/MC OL				
4	(initial/renewal)	\$58	\$48	\$0	\$10
5	PIDC (initial/renewal)	\$28	\$25	\$3	\$0
6	PIDC (duplicate/corrected)	\$15	\$13.50	\$1.50	\$0

7 (3) Except as provided in **subsections (10) and (11)**~~[subsection (10)]~~ of this section, the
8 fees imposed for standard operator's licenses, instruction permits, and personal
9 identification cards shall be as follows and, unless otherwise noted, are for an eight
10 (8) year period:

11	Card Type	Fee	LF	GF	MCF
12	OL (initial/renewal)	\$43	\$43	\$0	\$0
13	OL (Under 21) (Up to 4 years)	\$15	\$15	\$0	\$0
14	Any OL, MC, or combination				
15	(duplicate/corrected)	\$15	\$13.25	\$1.75	\$0
16	Motor vehicle IP (3 years)	\$15	\$13	\$2	\$0
17	Motorcycle IP (1 year)	\$15	\$10	\$1	\$4
18	Motorcycle OL (initial/renewal)	\$43	\$33	\$0	\$10
19	Combination vehicle/MC OL				
20	(initial/renewal)	\$53	\$43	\$0	\$10
21	PIDC (initial/renewal)	\$23	\$20	\$3	\$0
22	PIDC (duplicate/corrected)	\$15	\$13.50	\$1.50	\$0
23	PIDC (no fixed address) under				
24	KRS 186.4122(5)/186.4123(5)				
25	(initial, duplicate, or corrected)	\$0	\$0	\$0	\$0

26 (4) The fee for a four (4) year original or renewal license issued pursuant to KRS
27 186.4101 shall be fifty percent (50%) of the amount shown in subsections (2) and

1 (3) of this section. The distribution of fees shown in subsections (2) and (3) of this
2 section shall also be reduced by fifty percent (50%) for licenses that are issued for
3 four (4) years.

4 (5) Any fee for any identity document applied for using alternative technology under
5 KRS 186.410 and 186.4122 shall be distributed in the same manner as a document
6 applied for in person with the cabinet.

7 (6) (a) An applicant for an original or renewal operator's license, permit, commercial
8 driver's license, motorcycle operator's license, or personal identification card
9 shall be requested by the cabinet to make a donation to promote an organ
10 donor program.

11 (b) The donation under this subsection shall be added to the regular fee for an
12 original or renewal motor vehicle operator's license, permit, commercial
13 driver's license, motorcycle operator's license, or personal identification card.
14 One (1) donation may be made per issuance or renewal of a license or any
15 combination thereof.

16 (c) The fee shall be paid to the cabinet and shall be forwarded by the cabinet on a
17 monthly basis to the Kentucky Circuit Court Clerks' Trust for Life, and such
18 moneys are hereby appropriated to be used exclusively for the purpose of
19 promoting an organ donor program. A donation under this subsection shall be
20 voluntary and may be refused by the applicant at the time of issuance or
21 renewal.

22 (7) In addition to the fees outlined in this section, the following individuals, upon
23 application for an initial or renewal operator's license, instruction permit, or
24 personal identification card, shall pay an additional application fee of thirty dollars
25 (\$30), which shall be deposited in the photo license account:

26 (a) An applicant who is not a United States citizen or permanent resident and who
27 applies under KRS 186.4121 or 186.4123; or

- 1 (b) An applicant who is applying for a instruction permit, operator's license, or
2 personal identification card without a photo under KRS 186.4102(9).
- 3 (8) (a) Except for individuals exempted under paragraph (c) of this subsection, an
4 applicant for relicensing after revocation or suspension shall pay a
5 reinstatement fee of forty dollars (\$40).
- 6 (b) The reinstatement fee under this subsection shall be distributed by the State
7 Treasurer as follows:
- 8 1. Thirty-five dollars (\$35) shall be deposited into the photo license
9 account; and
- 10 2. Five dollars (\$5) shall be deposited into a trust and agency fund to be
11 used in defraying the costs and expenses of administering a driver
12 improvement program for problem drivers.
- 13 (c) This subsection shall not apply to:
- 14 1. Any person whose license was suspended for failure to meet the
15 conditions set out in KRS 186.411 when, within one (1) year of
16 suspension, the driving privileges of the individual are reinstated; or
- 17 2. A student who has had his or her license revoked pursuant to KRS
18 159.051.
- 19 (9) As payment for any fee identified in this section, the cabinet:
- 20 (a) Shall accept cash and personal checks;
- 21 (b) May accept other methods of payment in accordance with KRS 45.345; and
- 22 (c) May enter into billing agreements with homeless shelters, health care
23 facilities, or social service agencies that serve individuals without an
24 established and fixed nighttime residence of regular return.
- 25 (10) There shall be no fee assessed for the initial, renewal, or duplicate standard personal
26 identification card to an individual, if the individual:
- 27 (a) Does not possess a valid operator's license or a commercial driver's license;

1 and

2 (b) Is at least eighteen (18) years of age on or before the next regular election.

3 **(11) Subject to subsection (4) of Section 1 of this Act, a fee shall not be assessed for**
4 **the placement or removal of a communication disorder notation on an instruction**
5 **permit, operator's license, or personal identification card.**

6 ➔Section 3. This Act takes effect July 1, 2027.